

Court No. - 29

Case :- WRIT - C No. - 40030 of 2024

Petitioner :- Surendra

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Ajay Kumar Yadav

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Vivek Kumar Birla,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

1. Instructions dated 29.11.2024 furnished by the counsel for the respondent Nos. 2 and 3, are taken on record.

2. Heard Sri Ajay Kumar Yadav, learned counsel for the petitioner, learned Standing Counsel appearing for the State respondent(s) and Sri Rakesh Kumar Mishra, learned Advocate holding brief of Sri Narendra Kumar Tiwari, learned counsel appearing for the respondent nos. 2 and 3, the Purvanchal Vidyut Vitran Nigam Limited (PUVVNL), through its Managing Director and the Executive Engineer (Prescribed Authority), Electricity Distribution Division, District Fatehpur, respectively.

3. The present petition has been filed primarily seeking quashing of the recovery citation dated 21.09.2024, issued by the respondent No. 4, the Tehsildar, Tehsil Khaga, District Fatehpur. Further, a direction is sought by the petitioner to the respondent authority to decide the application dated 27.11.20021 moved by the petitioner before the J.E. Khaga.

4. After arguing at some length, learned counsel for the respondent Nos. 2 and 3, submits that the grievance of the petitioner can be suitably considered by the respondent No. 3, under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and that the petitioner may

be set at liberty to avail the aforesaid remedy.

5. Accordingly, the present petition is **disposed of** with liberty to the petitioner to avail the remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005, in respect of his grievances, by filing a detailed complaint/representation before the respondent No. 3, within a period of ten days from today fulfilling all the criteria, if any, exists.

6. In case the said remedy is availed by the petitioner within a period of ten days from today, it is expected that the respondent No. 3 shall consider and decide the same, in accordance with law on its own merits.

7. As agreed by the learned counsel appearing for the respondent No. 3 and in the interest of justice, it would be expected that for a period of one month or till disposal of the complaint/representation to be filed by the petitioner, whichever is earlier, **no coercive measures shall be adopted against the petitioner.**

8. It is made clear that this Court has not considered the case on its merits and that in case the petitioner fails to avail the aforesaid remedy within a period of 10 days from today, the interim arrangement/protection shall automatically stand vacated and the respondent authority would be at liberty to act in accordance with law.

Order Date :- 3.12.2024

Arun K. Singh